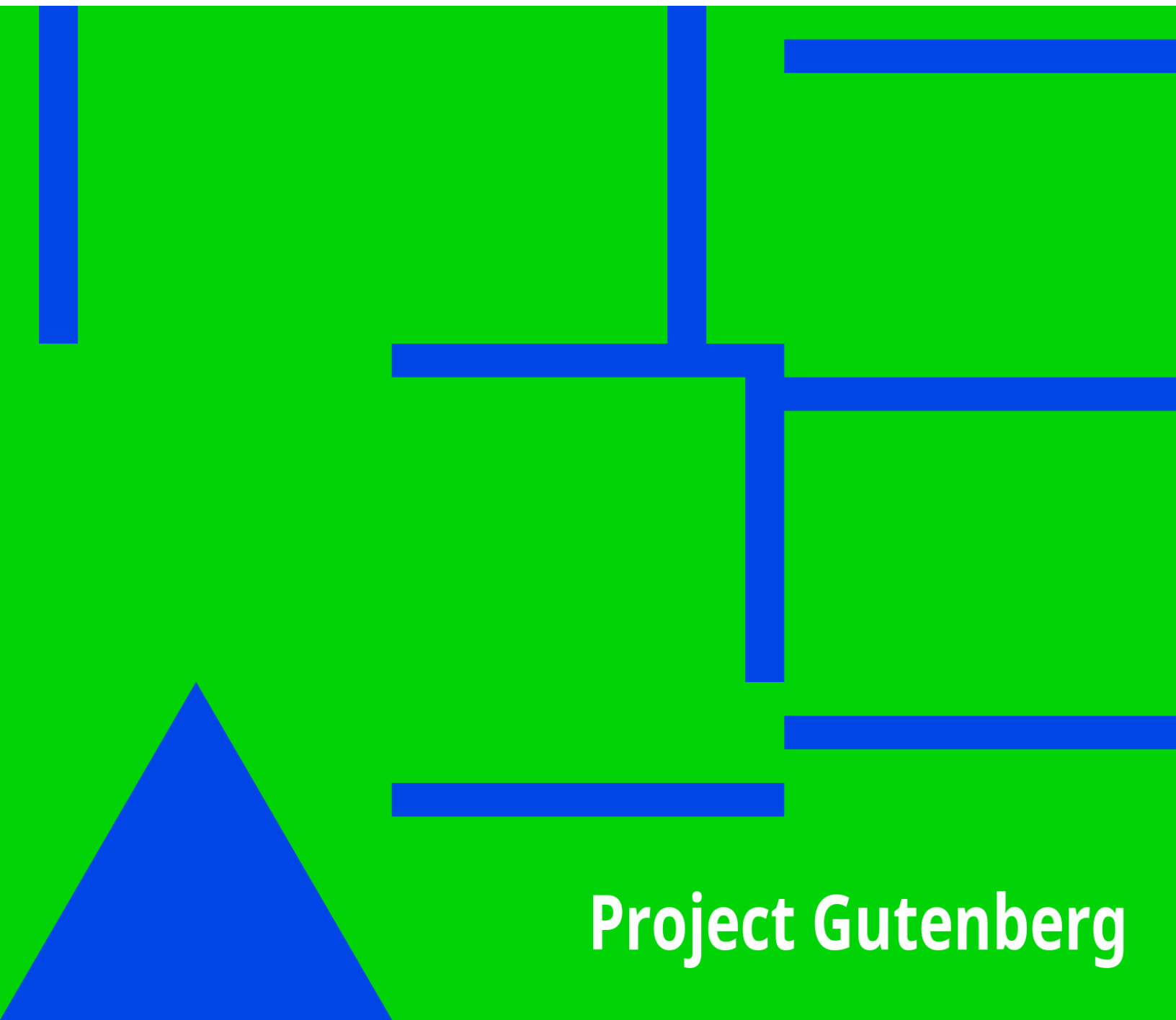


# The Peacemaker

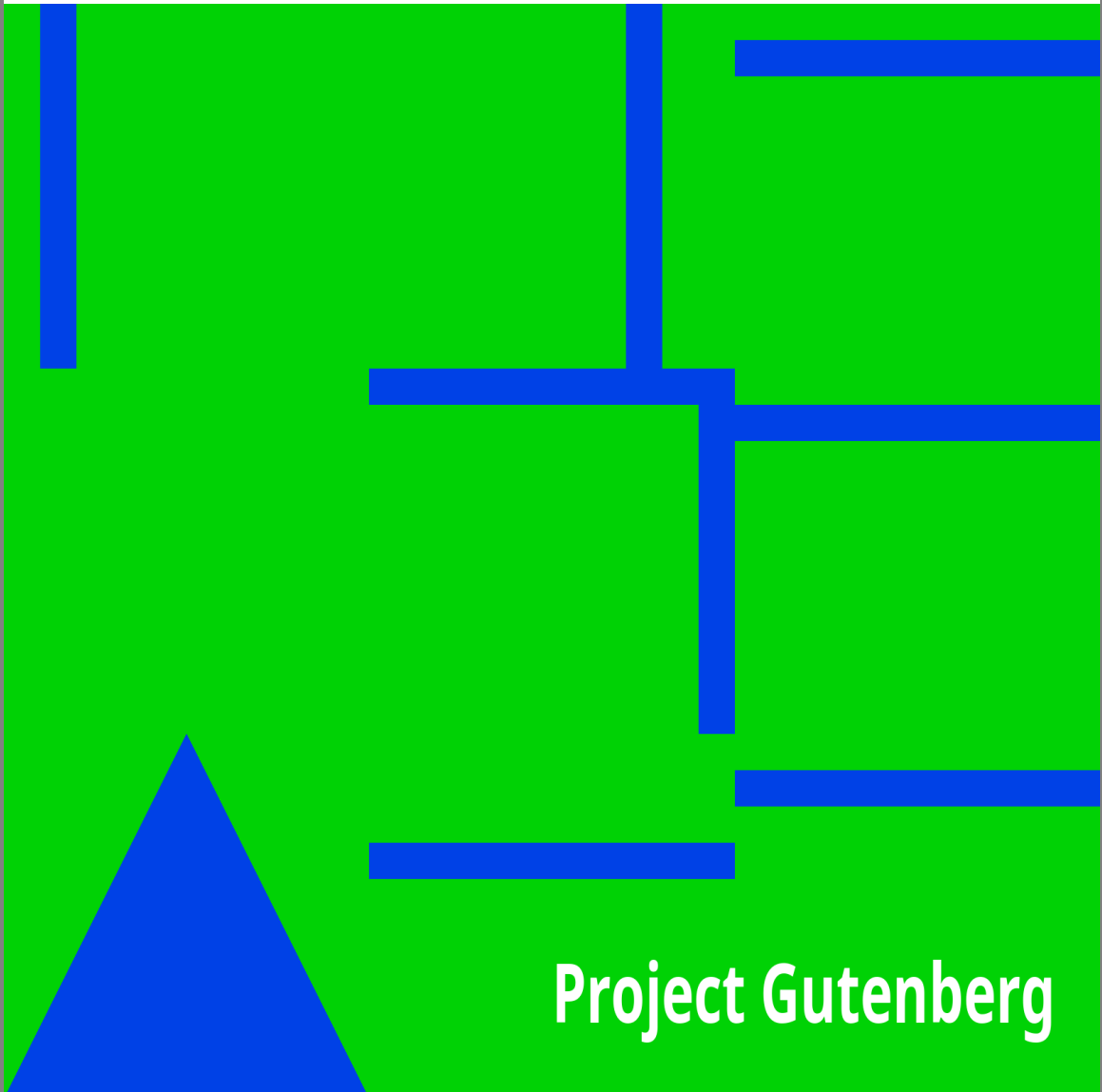
Alfred Coppel

An abstract geometric design featuring a solid green background. Overlaid on this are several thick blue lines and shapes. In the bottom-left corner, there is a large blue right-angled triangle. A series of blue lines forms a stepped, staircase-like pattern across the middle of the image. Specifically, there are vertical lines on the left and right sides of the central area, and horizontal lines that connect them at various heights, creating a series of rectangular blocks. The lines are of uniform thickness and color.

Project Gutenberg

# The Peacemaker

Alfred Coppel



Project Gutenberg

## **The Project Gutenberg eBook of The Peacemaker**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Peacemaker

Author: Alfred Coppel

Illustrator: Bob Martin

Release date: March 25, 2010 [eBook #31767]

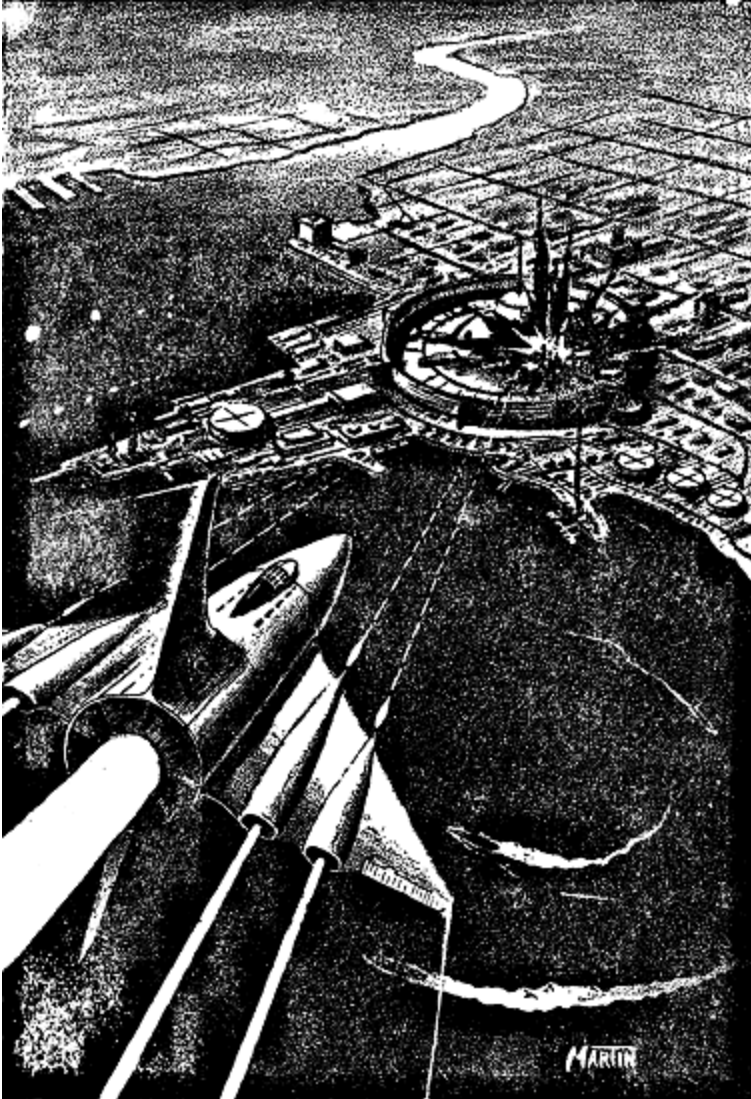
Language: English

Other information and formats: [www.gutenberg.org/ebooks/31767](http://www.gutenberg.org/ebooks/31767)

Credits: Produced by Greg Weeks, Stephen Blundell and the Online Distributed Proofreading Team at <http://www.pgdp.net>

\*\*\* START OF THE PROJECT GUTENBERG EBOOK THE  
PEACEMAKER \*\*\*

*The legends of Jaq Merrill are legion—but legends. Hark, ye, then  
to the true story of the pirate benefactor of Mankind!*



# THE PEACEMA KER

*The Arrow lanced down out of the night  
like a spear of flame, vengeful and deadly.*

## By Alfred Coppel

Illustrated by BOB MARTIN

**W**E HUMANS are a strange breed, unique in the Universe. Of all the races met among the stars, only *homo sapiens* thrives on deliberate self-delusion. Perhaps this is the secret of our greatness, for we are great. In power, if not in supernal wisdom.

Legends, I think, are our strength. If one day a man stands on the rim of the Galaxy and looks out across the gulfs toward the seetee suns of Andromeda, it will be legends that drove him there.

They are odd things, these legends, peopled with unreal creatures, magnificent heroes and despicable villains. We stand for no nonsense where our mythology is concerned. A man becoming part of our folklore becomes a fey, one-dimensional, shadow-image of reality.

Jaquith Merrill—the Jaquith Merrill of the history books—is such an image. History, folklore's jade, has daubed Merrill with the rouge of myth, and it does not become him.

The Peacemaker, the chronicles have named him, and that at least, is accurate in point of fact. But it was not through choice that he became the Peacemaker; and when his Peace descended over the worlds of space, Merrill, the man, was finished. This I know, for I rode with him—his lieutenant in a dozen and more bloody fights that earned him his ironically pacific laurels.

Not many now living will remember the Wall Decade. History, ever pliable, is rewritten often, and facts are forgotten. When it was gone, the Wall

Decade was remembered with shame and so was expunged from the record of time. But I remember it well. It was an era compounded of stupidity and grandeur, of brilliant discovery and grimy political maneuver. We, the greedy men of space—and that includes Jaq Merrill—saw it end with sorrow in our hearts, knowing that we had killed it.

If you will think back to the years immediately preceding the Age of Space, you may remember the Iron Curtain. Among the nations of the Earth a great schism had arisen, and a wall of ideas was built between east and west. Hydrogen bombs were stockpiled and armies marched and countermarched threateningly. Men lived with fear and hatred and distrust.

Then, suddenly, came the years of spaceflight and the expanding frontiers. Luna was passed. Mars and Venus and the Jovian Moons felt the tread of living beings for the first time since the dawn of time. The larger asteroids were taken and even the cold moonlets of Saturn and Uranus trembled under the blast of Terran rockets. But the Iron Curtain still existed. It was extended out into the gulf of space, an intangible wall of fear and suspicion. Thus was born the Wall Decade.

Jaq Merrill was made for that epoch. Ever in human history there are those who profit from the stupidity of their fellows. Jaq Merrill so profited. He dredged up the riches of space and took them for his own. And his weapon was man's fear of his brothers.

**I**T WAS in Yakki, down-canal from the Terran settlement at Canalopolis, that Merrill's plan was born. His ship, the *Arrow*, stood on the red sands of Syrtis Major, waiting for a payload to the Outer System. It stood among a good many like it: the *Moonmaid*, the *Gay Lady*, the *Argonaut*, and my own vessel, the *Starhound*.

We, the captains, had gathered in the Spaceman's Rest—a tinkling gin-mill peopled with human wrecks and hungry-eyed, dusty-skinned women who had come out to Mars hoping for riches and had found only the same squalor they had left behind. I remember the look in Merrill's eyes as he spoke of the treasures of space that would never be ours, of the gold and

sapphires, the rubies and unearthly gems of fragile beauty and great price. All the riches of the worlds of space, passing through our hands and into the vaults of the stay-at-homes who owned our ships and our very lives. It seemed to me that Merrill suffered as though from physical pain as he spoke of riches. He was nothing if not rapacious. Greedy, venal, ruthless. All of that.

"Five of us," he said in a hard voice, "Captains all—with ships and men. We carry the riches of the universe and let it slip through our fingers. What greater fools could there be?"

Oh, he was right enough. We had the power to command in our hands without the sense to grasp it firmly and take what we chose.

"And mark you, my friends," Merrill said, "A wall has been built around Mars. A wall that weakens rather than strengthens. A wonderful, stupid, wall...." He laughed and glanced around the table at our faces, flushed with wine and greed. "With all space full of walls," he said softly, "Who could unite against us?"

The question struck home. I thought of the five ships standing out there on the rusty desert across the silted canal. Five tall ships—against the stars. We felt no kinship to those at home who clung to creature comforts while we bucketed among the stars risking our lives and more. We, the spacemen, had become a race apart from that of the home planet. And Merrill saw this in our faces that night so long ago, and he knew that he had spoken our thoughts.

Thus was born the Compact.

Gods of space, but I must laugh when I read what history has recorded of the Compact.

*"Merril, filled with the wonder of his great dream, spoke his mind to the Captains. He told them of the sorrow in his heart for his divided fellow men, and his face grew stern when he urged them to put aside ideology and prejudice and join with him in the Compact."*

So speaks Quintus Bland, historian of the Age of Space. I imagine that I hear Merrill's laughter even as I write. Oh, we put aside ideology and prejudice, all right! That night in Yakki the five Captains clasped hands over the formation of the first and only compact of space-piracy in history!

**I**T WAS an all or nothing venture. Our crews were told nothing, but their pockets were emptied and their pittances joined with ours. We loaded the five ships with supplies and thundered off into the cobalt Martian sky to seek a stronghold. We found one readily enough. The chronicles do not record it accurately. They say that the fleet of the Compact based itself on Eros. This is incorrect. We wanted no Base that would bring us so close to the home planet every year. The asteroid we chose was nameless, and remained so. We spoke of it seldom aspace, but it was ever in our minds. There was no space wall, there to divide us one from the other. It was a fortress against the rest of mankind, and in it we were brothers.

When we struck for the first time, it was not at a Russian missile post as the histories say. It was at the *Queen of Heaven*, an undefended and unsuspecting merchantman. The records of Earth say the *Queen* was lost in space between Uranus and Mars, and this is so. But she was listed lost only because no Russian or American patrol found her gutted hulk. I imagine that at this very moment she hangs out beyond Pluto, rounding the bend of the long ellipse we sent her on that day we stripped her bones.

She carried gold and precious stones—and more important yet, women being furloughed home after forced labor in the mines of Soviet Umbriel. The *Starhound* and the *Arrow* bracketed her a million miles above the plane of the ecliptic near Saturn's orbit, and killed her. We drew abreast of her and forced her valves. We boarded her and took what we chose. Then we slaughtered her men and sent them on their long voyage. That was the beginning.

The attack against Corfu was our next move. This is the battle that Celia Witmar Day has described in verse. Very bad verse.

*"Corfu slumbered, gorged and proud—*



*While Arrow, Hound and Maid marshalled  
Freedom's might above the tyrant's ground,  
And rained down death—"*

There is much more, of course. Brave phrases of emotion and fanciful unreality written by one who never saw the night of space agleam with stars.

There was no talk of tyranny or liberty aboard the *Hound* that day we leveled with the *Maid* and the *Arrow* a thousand miles over the Russian Base of Corfu. There *was* talk of the bullion stored under the fortress' turrets.

Merril's face appeared in my visor screen, superimposed on the image of the grimy little asteroid floating darkly against the starfields.

"Their radar has picked us up by now, and they're wondering who we are," he said, "Take the *Hound* out on tangent left and join the *Maid*. Cover my attack and stand by to put a landing party aground."

I watched the image of the *Arrow*—a sliver of darkness against the crescent of Corfu—lancing down at the fortress. Her forward tubes were glowing with the familiar pre-discharge emanation.

Below us, confusion reigned. For the first time in memory an asteroid Base was under attack. Merrill brought the *Arrow* in to within fifty miles and then unleashed the fury of his forward tubes. Hellfire coruscated over the steel turrets and stone walls of Corfu. It splashed like a liquid flame over men and metal and twisted the towers and buttresses into spidery tendrils of glowing thread. Corfu died without firing a shot.

We put a party from the *Hound* aground ten hours later. Even then, we had to wear insulated suits to walk in that still molten inferno. Charred bodies had become one with the stuff of the fortress, and nothing living was left within the keep. We looted Corfu's treasure and lifted into space heavy with gold.

Time passed in an orgy of looting for the men of the Compact. We grew rich and arrogant, for in space we were kings. Torn by suspicion of one another, America and Russia could do nothing against us. They had built an Iron Curtain in space, and it kept them divided and weak.

Endymion felt our blasts, and Clio. Then came Tethys, Rhea, Iapetus. We cared nothing for the flag these Bases flew. They were the gathering points for all the gold and treasure of space and we of the Compact took what we wished of it, leaving a trail of blood and rapine behind us. No nation claimed our loyalty; space was our mother and lust our father.

Thus, the Peacemakers.

FOR FIVE full years—the long years of the Outer Belt—the *Arrow*, the *Starhound*, the *Moonmaid*, the *Lady* and the *Argonaut* were the scourges of the spacelanes. No patrol could find us, and no defense could contain us. I recall how we laughed at the angry sputtering of Earth's radio. Vast sums were spent in searches and new weapons to protect the meek and the mutually distrustful from Merrill and the men of the Compact. Budgets, already strained to the breaking point by generations of the cold war, creaked and groaned as Russians and Americans spent furiously to build up their defenses against our depredations. But though we were few and they many—space was large and it hid us well.

And then one darkling day, Jaq Merrill and I stood on the thin methane snow that carpeted our Base's landing ramp, waiting under our own blue-black sky for the return of the *Argonaut*. Merrill had sent her sunward to strike at the mines of Loki, an asteroid where Russian *komisars* rolled in mountains of blood-red rubies.

We waited through the day and into the sable night, but the *Argonaut* did not return. For the first time since the formation of the Compact, we had lost a ship, and something like unease crept into our hearts. The carousal that night had no gaiety, and there was the sound of bereaved women weeping.

Merril could learn nothing of the *Argonaut's* fate. It was as though she had dropped through a hole in the fabric of space itself and vanished from the ken of men. To me he said: "I fear a new weapon." But to the rest, he kept his peace and let the work of the Compact continue. There was nothing else to be done. Our Wall Decade was waning, and when a man or a Compact outlives the age that gave him or it birth, there is nothing to do but go forward and meet the new day dawning.

So it was with the Compact. We lived on as we had lived before: looting and killing and draining the wealth of space into our coffers. But in the back of our minds a shadow was lurking.

On the next raid, the *Lady* was lost. I saw it happen, as did Merrill. There was nothing we could do to help her, and she died, spilling men into the void as she ruptured in her last agony.

It was off Hyperion, whence we had come to loot the trove built there by the prospectors of the Saturnian Moons. And it was a trap.

The *Arrow*, the *Hound* and the *Lady* circled the moonlet, swinging inward to the attack. It was the *Lady* who was to put aground the raiding party, and her valves hung open while men readied the assault-boats. Our radar screens showed nothing of danger. There was only the bloated giant in the sky, a ringed monster of yellow gold against the starry velvet of space.

The *Lady* dropped her boats, the *Hound* and the *Arrow* hovering by to watch over their sister. And suddenly, the jagged moonscape below erupted—belching streaks of fire that sought us like probing fingers. I knew in one single instant of terror that this was the new weapon that had killed the *Argonaut*, for it sliced into the *Lady's* flanks as though the steelite hull were cheese.

She bulged, glowing like an ember. There was a sudden nimbus of snow about her as her air escaped and froze, and then she rolled into her death-dance, open from bow to stern, spilling scorched corpses into the void.

The *Arrow* and the *Hound* drove off into space like furies leaving the spinning body of their sister ship behind, not waiting to watch her crash down onto the rocky face of Hyperion. And now the five of the Compact

were only three, and again there was the sound of weeping among our women.

TWO MONTHS after that engagement, a single assault-boat returned to Base. It was the lone survivor of the *Lady's* landing party. By some miracle, the three men aboard had escaped the holocaust. They had landed and been captured and then they had fought their way free and into the void once more. They were half-dead from starvation and exposure, but they had brought word to Merrill that the wall that had so long protected us was crumbling.

Merril sought me out, his lean hard face grim and set.

"There was a Russian among the Americans on Hyperion," he said.

"A prisoner?" It was my hope that spoke so, not my sure knowledge of what was to come.

Merril shook his head slowly. "A technician. They developed the beam that killed the *Argonaut* and the *Lady*—together." His voice was harsh and bleak. Then suddenly he laughed. "We've touched them," he said, "Touched them on their tender spot—their purses." He bowed low, filled with bitter mockery. "Behold the diplomats, the men who are accomplishing the impossible!"

And I knew that his words spelt doom. Doom for the Compact and for the Wall Decade that was our life.

Yet we did not stint. In that year we raided Dione, Io, Ganymede, and even the American naval Base on Callisto. We gutted six Russian and four American rockets filled with treasure. And we ventured sunward as far as the moons of Mars.

We dared battles with patrol ships and won. We killed the destroyer *Alexei Tolstoi* off Europa and we shattered an American monitor over Syrtis itself, and watched the wreckage rain down on Yakki, the place where the Compact was born.

And we lost the *Moonmaid*.

The radio told us the story. Other new weapons were being developed against us, and here and there American and Russian spacecraft were seen in company for the first time in the history of the Age of Space. Convoys were formed from ships of both flags to protect spatial commerce from the imagined "great fleet" of the Compact. None knew that only the *Arrow* and the *Starhound*, small ships, weary ships, were left to face the slowly combining might of Earth.

And then at last, the pickings—growing slimmer always—diminished to the vanishing point. Merrill stood before us and gave the assembled crews their option.

"The treasure hunt is over," our captain told us, "And those who wish may withdraw now. Take your women and the space-boats and return to Mars. You have your shares, and you can live in comfort wherever you may choose. If you wish it, go now."

Some few did go, but most remained. I watched Merrill's face, and saw one last plan maturing there. Then he spoke again and we all understood. One last raid ... to take Luna and command the world!

*"Still the unity of Mankind was not secure, and Merrill, filled with impatience for his great dream, decided on one final stroke. He would descend on Luna Base itself with his fleet, and commanding all Earth, he would drive men together—even though it might mean his own death. With this plan of self-immolation in his heart, the Peacemaker ordered his hosts and sought the pumice soil of the mother planet's moon...."*

This is the way Quintus Bland, historian and scholar, puts it down for posterity. I, one of "his hosts," would say it another way.

We had gutted the Solar System of its treasure and at last men were uniting against us. Our "fleet" was reduced to two small ships and a bare handful of men and women to fight them. Jaq Merrill could see the handwriting on the wall and he knew that all must be gambled on one last throw of the dice. Only with Terra herself under our guns could we hope to continue sucking the juice of the worlds into our mouths. It was all or nothing, for we had grown used to our life and we could no longer change it to meet the demands of the dawning age of Soviet-American amity.

SIDE BY SIDE the *Arrow* and the *Hound* slanted sunward. Mars behind us, ahead lay the Earth-Moon system. Ten years had passed since any of us aboard the Compact ships had seen the home world, and though we no longer felt a part of it, the sight of the silvery cloud-flecked globe touched our hearts. Touched them as the sapphires of Mimas or the gold of Corfu touched them. We saw the planet that gave us birth and we were filled with hunger for it. To own it, command it, make it our own.

Luna's mountains were white and stark under our keels as Merrill led us across the curve of the southern horizon, seeking to put us into position to attack the UN Moon Base in Clavius from the direction of the Moon's hidden face.

We swung low across unnamed mountain ranges and deep sheer valleys steeped in shadow. The voice of the ranger in the *Arrow* came softly through the open intercom into the tiny control room of the *Hound*. A woman's voice, tense with excitement, but disciplined and controlled.

"Range five hundred miles, four seventy five, four fifty—"

And then Merrill's voice, calm and reassuring, giving heart to all the untried ones aboard with his steady conning commands.

"Four o'clock jet, easy, hold her. Drivers up one half standard. Steady goes. Meet her. Steady—"

Line astern now, the two ships flashing low across the jagged lunar landscape, and a world in the balance—

An alarm bell ringing suddenly, and my screen showing the fleeting outline of a Russian monitor above, running across our stern. My own voice, sharp with command:

"Gun pointer!"

"Here, sir!"

"Get me that gunboat."

The *Hound's* turret wound about with agonizing slowness as the monitor reached for the sky, clawing for altitude and safety. And then there came a searing blast of fire and the fragments of the Russian gunboat raining down lazily, seeking their eternal rest in the pumice of Luna's hidden face.

But they had been warned at the UN Base. The monitor had left one dying shriek in the ether, and the waiting garrison had heard. Merrill knew it, and so did I. We moved forward calmly, into the jaws of hell.

The *Arrow* attacked from ten o'clock, low on the horizon, the *Hound* from twelve o'clock high. We swept in over the batteries of pulsating projectors, raining down our bombs. The ground shuddered and shook with the fury of exploding uranium and the sky was laced with a net of fiery death. The *Hound* shrieked her protest as I swung her about for another attack.

There was a sickening swerve and the smell of ozone in my ship. Somewhere, deep within her, a woman screamed and I felt the deck under me give as one of the questing beams from the fortress below cut into the hull. Airtight doors slammed throughout the wounded vessel, and I drove her to the attack again, hard. The last of the bombs clattered out of the vents, sending mushrooms of pumice miles into the black sky. One battery of guns below fell silent.

The *Arrow* vanished into the night above and as suddenly reappeared, her forward tubes spewing red fire onto the Base below. Then Merrill pulled her up again and disappeared among the pale stars.

The *Hound's* hurt was mortal, I could feel her dying under my hands, and tears streaked my face. Below decks, she was a shambles where the cutting beam from the ground had torn part of her heart out. Still I fought her. There was no retreat from this last raid, nor did I wish any. There was a madness in us—a blood-lust as hot and demanding as ever our lust for gold and treasure might have been.

I lashed the face of the fortress with the *Hound's* forward tubes, frantically, filled with a hateful anguish. I felt my ship losing way, twisting and seeking rest on the jagged ground below, and thinking he had deserted us, I cursed Merrill in an ecstasy of blind fury.

Again and again the *Hound* was hit. I knew then that Merrill's plan had been madness, a last gesture of defiance to the new age of unity among men. The *Hound* fell at last, spitting fire and gall in a futile dance of death.

She struck on a high plateau, grinding into the pumice, rolling with macabre abandon across the face of the high tableland. Then at last she was still, hissing and groaning fitfully as she died, her buccaneering days gone forever.

I donned a suit and staggered, half dazed, out into the lunar night. A half-dozen men and women from the crew had survived the impact and they stood by the wreckage, faces under the plastic helmets turned skyward. They were one and all stunned and bleeding from the violence of the *Hound's* end, but they looked neither back nor around them. Their eyes were filled with the insane glory of the drama being enacted in the sky.

The *Arrow* had returned. She lanced down out of the night like a spear of flame, vengeful and deadly. Straight into the mouth of the screaming guns she dove, death spilling from her tubes. She bathed the Moon Base in fire, searing the men within—Russian and American alike—into the brotherhood of death.

Miraculously, she pulled up out of her encircling net of flame. We watched in openmouthed wonder as she reached with sobbing heart for the sky just



once again—and then, failing, crippled and dying, she hung above the crater's rim, framed with deadly beams from below, but radiant in her own right—gleaming in the light of the sun.

This was defeat. We knew it as we stood by the tangled pile of steelite that had been the *Hound* and watched the *Arrow* die. But nothing in this life that I have lived ever told me so grandly that the Wall Decade was ended—and our life of buccaneering with it—as the thing that happened next.

The *Arrow's* valve opened and a tiny figure stepped out—into space. I did not need to be told that Jaq Merrill was coming to meet the men he had welded together against him.

Lazily, unreally, the tiny shape twisted over and over as it fell, until at last it vanished amid the raw welter of craters and ridges beyond the razor wall of Clavius....

**I** HAVE TOLD a true tale, though one that will not be believed. I have taken the Peacemaker of the histories and painted him *as he was*.

But men are ashamed, and the chronicles of history must be rewritten to hide their weaknesses, Jaq Merrill has become a legend, and the man that I knew is forgotten.

Merril—pirate, fighter, grandiose dreamer. That was my captain. Not the colorless do-good creature of the legend. Merrill fought for lust and greed, and these are the things that will one day take men to the stars. He knew this truth, of course, and that was the substance of his great dream. Because of it, there are no longer walls in space, and the men who united to fight the Peacemaker will one day rule the universe.

Meanwhile, chroniclers will write lies about him, and Jaq Merrill's laughter will echo in some ghostly Valhalla beyond the farthest star.

THE END



## Transcriber's Note:

This etext was produced from *If: Worlds of Science Fiction* January 1953. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed. Minor spelling and typographical errors have been corrected without note.

\*\*\* END OF THE PROJECT GUTENBERG EBOOK THE  
PEACEMAKER \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to



you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.



[back](#)